



General Assembly

February Session, 2026

Substitute Bill No. 232



***AN ACT CONCERNING STREAMING VIDEO SERVICES AND THE
VOLUME OF COMMERCIAL ADVERTISEMENTS.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. (NEW) (*Effective October 1, 2026*) (a) As used in this section:

2 (1) "Cable operator" has the same meaning as provided in 47 USC 522,
3 as amended from time to time;

4 (2) "Commercial advertisement" has the same meaning as such term
5 is used in the Commercial Advertisement Loudness Mitigation Act, P.L.
6 111-311, as amended from time to time;

7 (3) "Commissioner" means the Commissioner of Consumer
8 Protection;

9 (4) "Consumer" means any person who is physically present in this
10 state and is a recipient, or a prospective recipient, of a streaming video
11 service;

12 (5) "Department" means the Department of Consumer Protection;

13 (6) "Multichannel video programming distributor" has the same
14 meaning as provided in 47 USC 522, as amended from time to time;

15 (7) "Person" means any individual, association, corporation, limited
16 liability company, partnership, trust or other legal entity;

17 (8) "Streaming video service" means any service through which any
18 video content, including, but not limited to, any video programming, is
19 made available directly to consumers through a distribution method
20 that uses the Internet protocol;

21 (9) "Streaming video service provider" or "provider" (A) means any
22 person who makes a streaming video service available directly to
23 consumers, and (B) does not include (i) any television broadcast station,
24 (ii) any multichannel video programming distributor, including, but not
25 limited to, any cable operator, or (iii) any person who makes available
26 any video content, including, but not limited to, any video
27 programming, without commercial advertisements;

28 (10) "Television broadcast station" has the same meaning as provided
29 in 47 USC 325, as amended from time to time; and

30 (11) "Video programming" has the same meaning as provided in 47
31 USC 613, as amended from time to time.

32 (b) On and after July 1, 2027, and except as provided in subsection (c)
33 of this section, no streaming video service provider shall transmit the
34 audio of any commercial advertisement by way of a streaming video
35 service at a volume that is louder than the volume established in the
36 regulations adopted by the Federal Communications Commission for
37 television broadcast stations or multichannel video programming
38 distributors, including, but not limited to, cable operators, pursuant to
39 the Commercial Advertisement Loudness Mitigation Act, P.L. 111-311,
40 as said act and such regulations may be amended from time to time.

41 (c) (1) If a streaming video service provider believes that compliance
42 with the provisions of subsection (b) of this section would pose a
43 significant financial hardship to the provider, the provider may submit
44 a waiver application to the Department of Consumer Protection in a
45 form and manner prescribed by the Commissioner of Consumer
46 Protection. The waiver application shall include:

47 (A) The name and business address of the provider;

48 (B) A description of the nature and extent of the alleged significant
49 financial hardship and any supporting information or documents; and

50 (C) Any other information or documents the commissioner may
51 reasonably require for the purposes of this subdivision.

52 (2) Not later than thirty days after the department receives a
53 completed waiver application submitted under subdivision (1) of this
54 subsection, the commissioner shall (A) review such application, (B) on
55 the basis of such review and in the commissioner's sole discretion, issue
56 a decision approving or disapproving such application and issuing or
57 not issuing a waiver, and (C) send notice to the streaming video service
58 provider, in a form and manner prescribed by the commissioner,
59 disclosing the commissioner's decision and the basis for such decision.

60 (3) Each waiver issued pursuant to subdivision (2) of this subsection
61 (A) shall be valid for a period of one year beginning on the date on
62 which the commissioner sends notice to the streaming video service
63 provider disclosing the commissioner's decision to approve such
64 provider's application and issue such waiver, and (B) may be renewed
65 for an additional one-year period (i) upon submission of a waiver
66 renewal application made during the initial waiver period and in the
67 manner set forth in subdivision (1) of this subsection for an initial waiver
68 application, and (ii) subject to review and approval by the commissioner
69 in the manner set forth in subdivision (2) of this subsection for review
70 and approval of an initial waiver application.

71 (d) The Commissioner of Consumer Protection may adopt
72 regulations, in accordance with the provisions of chapter 54 of the
73 general statutes, to implement the provisions of subsections (b) and (c)
74 of this section.

75 (e) Any violation of the provisions of subsection (b) of this section
76 shall constitute an unfair trade practice for the purposes of subsection
77 (a) of section 42-110b of the general statutes. The provisions of section
78 42-110g of the general statutes shall not apply to any such violation.
79 Nothing in this section shall be construed as providing the basis for a

80 private right of action for any violation of subsection (b) of this section.

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>October 1, 2026</i>	New section
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Statement of Legislative Commissioners:

In Subsec. (b), "Beginning on" was changed to "On and after" for consistency with standard drafting conventions.

GL *Joint Favorable Subst. -LCO*